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Bill would ban popular dyes from school food

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Those vibrant dyes that color your Easter eggs, Gatorade, Fanta sodas, Doritos and candies such as Skittles might soon be deemed unsafe for kids at California public schools.

After adopting a bill last year that outlaws four food additives statewide starting in 2027, California now is moving to ban more than half a dozen dyes — Blue Nos. 1 and 2, Green 3, Red 40, Yellow 5 and 6, and the white pigment titanium dioxide — from foods offered at public schools.

"As a lawmaker, a parent, and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to cancer, hyperactivity and neurobehavioral harms," said Assemblymember Jesse Gabriel, an Encino Democrat and author of Assembly Bill 2316 who also wrote last year's California Food Safety Act that critics dubbed a "Skittles ban." "This bill will empower schools to better protect the health and wellbeing of our kids and encourage manufacturers to stop using these dangerous additives."

Gabriel noted a 2021 California Office of Environmental Health Hazard Assessment report that said "consumption of synthetic food dyes can result in hyperactivity and other neurobehavioral problems in some children," and Food and Drug Administration safety assessments "are based on 35to 70-year-old studies." The report cited a dramatic rise in U.S. kids diagnosed with attention deficit/hyperactivity disorder in recent years.

The National Confectioners Association, which represents the candy industry, said the FDA constantly assesses the safety of food ingredients and that the move is being pushed by activists with little scientific training.

"These activists are dismantling our national food safety system state by state in an emotionally-driven campaign that lacks scientific backing," the NCA said in a statement. "FDA is the only institution in America that can stop this sensationalistic agenda, which is not based on facts and science."

It's unclear how much the bill would affect meals and snacks offered by schools, which have made efforts to provide healthier alternatives. The dyes aren't found in, say, a ham and cheese or peanut butter and jelly sandwich. They are, however, common in candies, colorful drinks and many processed snack foods.

Cheetos Crunchy Flamin' Hot and Doritos' Flamin Hot Nacho flavors have Red 40 and Yellow 5 and 6. Green Gatorade has Yellow 5. Hostess Donettes powdered sugar doughnuts have titanium dioxide. Some of those items might be found in a school vending machine.

The FDA had no immediate comment, but its website indicated that it considers the dyes that would be subject to the proposed law safe.

Yellow 5 dye "may cause itching and hives in some people" in rare cases, the FDA said, but "the totality of scientific evidence shows that most children have no adverse effects when consuming foods containing color additives," though some "may be sensitive to them."

The FDA said its food advisory committee reviewed dyes in 2011 and "concluded that a link between children's consumption of certified color additives causing behavioral effects had not been established."

The FDA website indicates the agency is reviewing a challenge filed last year to the safety of titanium dioxide, which it considers safe for use as a color additive in foods, according to the specifications that it not exceed 1% by weight of the food.

A United Nations and World Health Organization committee on food additives reevaluated titanium dioxide last year and found it to be safe, the FDA reported. And although the European Food Safety Agency could not rule out possible cancer links, health authorities in the United Kingdom, Canada and New Zealand disagreed, and the FDA also didn't find a basis for cancer concerns.

Titanium dioxide originally was to be banned in last year's California Food Safety Act but was dropped before final passage. The additives banned in California in 2027 are Red No. 3 dye, potassium bromate, brominated vegetable oil and propyl paraben.

The FDA is currently reviewing the safety of Red No. 3 3, says propyl paraben is generally recognized as safe, and potassium bromate may be safely used. In November, the FDA said it can no longer affirm the safety of brominated vegetable oil, a stabilizer for fruit flavoring in beverages and would revoke its authorization.

"The FDA continues to fail to keep us safe from harmful chemicals in our food," said Melanie Benesh, Environmental Working Group's vice president of government affairs. "In the absence of federal leadership, states like California continue to step up to keep us safe from toxic chemicals we and our families enjoy."

But the confectioners association argued that the brominated vegetable oil example shows that the FDA is staying on top of food safety, and its role shouldn't be usurped piecemeal by states.

"This is how our food safety system was designed to work," the NCA said in a statement, "and it's a real-time example of it working."

The bill will be heard in the Assembly Education Committee in coming weeks.

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